

Bonacina — the Bulla Cœnæ UPA locus (nn. 9–11) with the election-treatise appendix

Latin–English parallel text: Opera t. III (Lyon 1639) pp. 7–8; De legitima electione (1637) pp. 56–57, 78–79, 90–91, 107–109

Latin

9 Septimò probabiliter sustineri posse, illum esse hæreticum, & consequenter excommunicatum in Bulla Cœnæ, qui negat hunc Summum Pontificem Vrbanum VIII. esse verum Papam, & caput Ecclesiæ, postquam sufficienter proponitur, seu postquam constat ipsum esse ritè, & canonicè electum. Ratio est, tum quia in sententia multorum DD. de fide est, hunc esse verum Papam, & patebit ex rationibus proximè adducendis; ergo hæresim committit, qui negat hunc esse verum Papam. negans enim propositionem de fide, hæreticus est. Tum quia, dum hæretici Ecclesiæ reconciliantur, ex constitutione Martini V. interrogari debent, an credant Pontificem pro tempore esse verum Pontificem, successorem beati Petri, & Christi Vicarium; ergo signum est hunc esse fidei articulum. Tum quia tota Ecclesia credit, & tenet hunc esse verum Papam; ergo id credit fide diuina, non verò humana; alioquin falli posset, cùm fidei humanæ falsum subesse possit. Tum quia id, quod Summus Pontifex definit, & declarat tanquam de fide credendum, non est credendum fide humana, sed diuina; ergo etiam fide diuina credendum est, ipsum esse verum Pontificem, Petri successorem, & Christi Vicarium in terris; alioquin obligaremur ad credendum fide diuina iudicium huius Pontificis, quem fide solùm humana crederemus esse vnum Papam, sancti Petri successorem. Præterea dum Summus Pontifex aliquid de fide credendum definit, infallibilem habet Spiritus sancti assistentiam; alioquin posset nobis aliquid fide diuina credendum proponere, quod re ipsa credendum non esset; quod rectæ gubernationi Ecclesiæ, & diuinæ prouidentiae aduersatur. sed qui habet infallibilem Spiritus sancti assistentiam, est verus Papa, illique credere debemus. nam pseudo-Papa non habet assistentiam Spiritus sancti, illique non debemus credere; non enim credere debemus pseudo-Prophetis, & pseudo-Christis, *Matth. 24*. Tum quia ex vna propositione de fide, & altera

English

9 Seventhly, that it can with probability be maintained that he is a heretic, and consequently excommunicated in the Bulla Cœnæ, who denies this Supreme Pontiff Urban VIII to be true Pope and head of the Church, after he is sufficiently proposed, or after it is established that he has been duly and canonically elected. The reason is, first because in the opinion of many Doctors it is of faith that this man is true Pope, and it will be evident from the reasons presently to be adduced; therefore he commits heresy who denies this man to be true Pope. for he who denies a proposition of faith is a heretic. Then because, when heretics are reconciled to the Church, by the constitution of Martin V they must be asked whether they believe the Pontiff for the time being to be true Pontiff, successor of blessed Peter, and Vicar of Christ; therefore it is a sign that this is an article of faith. Then because the whole Church believes and holds this man to be true Pope; therefore she believes it by divine faith, not indeed by human; otherwise she could be deceived, since falsehood can underlie human faith. Then because that which the Supreme Pontiff defines and declares as to be believed of faith is not to be believed by human faith, but by divine; therefore it is also to be believed by divine faith that he is true Pontiff, successor of Peter, and Vicar of Christ on earth; otherwise we should be obliged to believe by divine faith the judgment of this Pontiff, whom by only human faith we should believe to be the one Pope, successor of Saint Peter. Moreover, when the Supreme Pontiff defines something to be believed of faith, he has the infallible assistance of the Holy Spirit; otherwise he could propose to us something to be believed by divine faith which in very fact would not be to be believed; which is contrary to the right governance of the Church and to divine providence. but he who has the infallible assistance of the Holy Spirit is true Pope, and him we must believe. for a pseudo-Pope does not have the assistance of the Holy Spirit, and him we must not believe; for we must not believe false prophets and false Christs, *Matth. 24*. Then because from one proposition of faith and another morally certain, in the opinion of many Doctors, against Suarez and others, there can be inferred through a Theological syllogism a conclusion

Latin

moraliter certa, in sententia multorum Doctorum, contra Suarez, & alios, inferri potest per syllogismum Theologicum conclusio, quæ fide diuina credatur, non quidem, vt illata per syllogismum, (assensus enim conclusionis non est assensus fidei,) sed vt explicata per alias propositiones; talis autem conclusio est ista: Qui canonicè electus est in Papam, est verus Papa; sed hic canonicè electus est; ergo est verus Papa. Tum quia si fide non constat hunc esse verum Papam, neque constare potest hoc esse verum Concilium. nam verum Concilium formaliter includit verum Papam; sed negans hoc esse verum Concilium, est hæreticus, non minus, ac si negaret, vera esse quatuor Euangelia, teste Magno Gregorio; ergo, &c. Ita Azor. 2. *part. lib. 5. cap. 5. quæsito 4.* Suarez in *tract. de fide, spe, & charitate disp. 10. sect. 5. num. 2.* & alij recentiores Magistri Societatis Iesu, contra Caietanum 2. 2. *quæst. 1. art. 3. in propositione ad 4.* Bannem 2. 2. *q. 1. art. 10. in prioribus commentarijs dub. 2. ad 2.* Cordubam *lib. 1. q. 17. §. 2.* & alios, apud præcitatos DD.

Dixi, *postquam sufficienter proponitur*; quia qui negasset hunc esse verum Papam, antequam ei sufficienter proponeretur, non peccasset, nec fuisset hæreticus. nam qui facile credit, levis est corde: tunc autem sufficienter proponitur, dum constat ritè, & verè electum esse; vel, vt ait Suarez *num. 6.* dum moraliter constat illum esse acceptatum à tota Ecclesia, & pacificè possidere primatum, atque adeò posse obligare omnes fideles ad credendum quidquid definierit.

10 Obiicies primò, non minus de fide est, nunc adesse Christi corpus sub speciebus consecratis in Ecclesia Dei, in qua est verum sacerdotium, sacrificium, & sacramentum, quàm esse verum caput Ecclesiæ; sed non est de fide has species in particulari esse verè consecratas, & verum Christi corpus continere; ergo neque de fide est, hunc esse verum Papam, caput Ecclesiæ, successorem Beati Petri, & Christi Vicarium.

Respondeo, concessa maiori propositione, negandum esse consequentiam. Ratio disparitatis est, quia nullum sequitur inconueniens ex ignorantia, quòd hæ species non sint consecratæ: magna autem in Ecclesia perturbatio sequitur, si nesciatur, quisnam sit Ecclesiæ caput, via enim, & aditus aperitur

English

which is believed by divine faith, not indeed as inferred through the syllogism (for the assent of the conclusion is not the assent of faith), but as explicated through other propositions; and such a conclusion is this: He who is canonically elected Pope is true Pope; but this man is canonically elected; therefore he is true Pope. Then because if it is not established by faith that this man is true Pope, neither can it be established that this is a true Council. for a true Council formally includes a true Pope; but he who denies this to be a true Council is a heretic, no less than if he denied the four Gospels to be true, as Gregory the Great witnesses; therefore, etc. So Azor. 2. *part. lib. 5. cap. 5. quæsto 4.* Suarez in *tract. de fide, spe, & charitate disp. 10. sect. 5. num. 2.* and other more recent Masters of the Society of Jesus, against Caietanum 2. 2. *quæst. 1. art. 3. in propositione ad 4.* Bannem 2. 2. *q. 1. art. 10. in prioribus commentarijs dub. 2. ad 2.* Cordubam *lib. 1. q. 17. §. 2.* and others, in the aforecited Doctors.

I said, *after he is sufficiently proposed*; because he who had denied this man to be true Pope, before it was sufficiently proposed to him, would not have sinned, nor would he have been a heretic. for he that is hasty to give credit is light of heart: but it is sufficiently proposed then, when it is established that he has been duly and truly elected; or, as Suarez says *num. 6.* while it is morally established that he has been accepted by the whole Church, and peacefully possesses the primacy, and hence can oblige all the faithful to believe whatever he shall have defined.

10 You will object first, it is no less of faith that the body of Christ is now present under the consecrated species in the Church of God, in which there is a true priesthood, sacrifice, and sacrament, than that there is a true head of the Church; but it is not of faith that these species in particular are truly consecrated and contain the true body of Christ; therefore neither is it of faith that this man is true Pope, head of the Church, successor of Blessed Peter, and Vicar of Christ.

I respond, the major proposition being conceded, that the consequence must be denied. The reason for the disparity is that no inconvenience follows from ignorance that these species are not consecrated: but great disturbance follows in the Church if it be not known who is the head of the Church, for a way and an entrance is opened to schismatics and heretics, contending that

Latin

schismaticis, & hæreticis, contententibus suos pactores veros esse pastores, & caput Ecclesiæ. Propterea opus est, vt fide supernaturali, cui falsum subesse non potest, credatur hunc esse verum Ecclesiæ caput.

Obiicies secundò, non possumus credere fide diuina hunc esse verum Papam, nisi etiam credamus, eum esse baptizatum, sacerdotem, & canonicè electum; sed nobis non constat esse baptizatum, esse sacerdotem, & canonicè electum. ergo neque constat fide diuina esse verum Papam.

Respondeo primò, ex hoc argumento dumtaxat sequi Spiritum sanctum, qui Ecclesiæ assistit, non permissurum, vt is in Papam eligatur, & habeatur in tota Ecclesia, qui non sit baptizatus, sacerdos, & legitimè electus.

Respondeo secundò non videri absurdum, asserere de fide esse, Papam esse baptizatum, & sacerdotem; quia hic est articulus cum nostro coniunctus: dato enim vno articulo fidei, dari etiam debent cætera cum illo necessariò connexa; sicut dato tanquam de fide, quòd Christus fuerit verus homo, concedendum est etiam de fide habuisse cor, sanguinem in venis, & alia, quæ homini necessaria sunt.

Respondet tertiò Suarez has conditiones per se primò non pertinere ad fidem, sed esse quasi conclusiones theologicas, quæ consecutione quadam inferuntur: sicut enim ex fine arguuntur media; ita ex eo, quòd Deus Ecclesiæ concessit, vt nunquam erret in rebus fidei, & vera semper vtatur regula; ita etiam sua infallibí prouidentia disposuisse censetur, ne vnquam erret in electione illius, qui ad hanc dignitatem eligitur; sed eligat eum, qui præditus sit conditionibus ad eam necessariis. Hæc responsio quoad substantiam coincidere videtur cum duabus, quas ego attuli, & in hoc solùm differre videtur, quòd Suarez negat conclusionem Theologicam esse obiectum fidei, quod à pluribus aliis DD. negatur; quamuis enim conclusio Theologica, deducta ex vna de fide, & altera moraliter certa, non sit de fide, vt deducta, nihilominus vt explicata per alias propositiones potest esse obiectum fidei, vt alibi, Deo fauente, ostendam.

English

their own pastors are true pastors, and the head of the Church. Therefore it is necessary that it be believed by supernatural faith, which cannot have falsehood underlying it, that this man is the true head of the Church.

You will object secondly, we cannot believe by divine faith that this man is true Pope unless we also believe that he is baptized, a priest, and canonically elected; but it is not established for us that he is baptized, is a priest, and canonically elected. therefore neither is it established by divine faith that he is true Pope.

I respond first, that from this argument it only follows that the Holy Spirit, who assists the Church, will not permit that one be elected Pope, and held as such in the whole Church, who is not baptized, a priest, and legitimately elected.

I respond secondly that it does not seem absurd to assert that it is of faith that the Pope is baptized, and a priest; because this is an article conjoined with ours: for one article of faith being given, the other things necessarily connected with it must also be given; just as, it being given as of faith that Christ was true man, it must also be conceded as of faith that he had a heart, blood in his veins, and the other things which are necessary to a man.

Thirdly Suarez responds that these conditions do not of themselves primarily pertain to faith, but are as it were theological conclusions, which are inferred by a certain consecution: for just as the means are argued from the end; so from the fact that God has granted to the Church that she never err in matters of faith, and always use a true rule; so also he is deemed to have disposed by his infallible providence that she never err in the election of him who is elected to this dignity; but elect him who is endowed with the conditions necessary for it. This response as to its substance seems to coincide with the two which I have brought forward, and seems to differ only in this, that Suarez denies that a Theological conclusion is an object of faith, which is denied by several other Doctors; for although a Theological conclusion, deduced from one proposition of faith and another morally certain, is not of faith as deduced, nevertheless as explicated through other propositions it can be an object of faith, as elsewhere, God favoring, I shall show.

Latin

Obiicies tertiò, ita se habet Summus Pontifex respectu eorum, quæ credenda Ecclesiæ proponit, sicut se habet Concionator, qui fidem Barbaris explicat, & verbum Dei proponit; sed barbari non credunt fide infusa vera esse, quæ concionator proponit; sed per coniecturas iudicant ipsum non fallere. ergo neque fide diuina credenda sunt, quæ Summus Pontifex proponit; consequenter neque fide diuina credendum est hunc esse verum Papam.

Respondeo negando paritatem. nam Summus Pontifex se habet, tanquam iudex, & interpretes Dei; consequenter illius iudicium falli non potest. Concionator verò non est certus iudex, & interpretes, sed fieri potest, vt fallatur, & proponat, tanquam de fide credendum, quod re ipsa credendum non sit.

11 Obiicies quartò, qui vitas Pontificum scripserunt, affirmant Ioannem VIII. fuisse fœminam, sed fœmina incapax est sacerdotij, & Papatus. ergo non est de fide hunc esse verum Papam; quia fidei non potest subesse fasum.

Respondeo id omnino fabulosum esse, confictum ab hæreticis, & multis mendaciis adornatum, vt pluribus ostendit Cardinalis Bellarminus *lib. 3. de Romano Pontifice cap. 24.* Honufrius *in annotationibus* apud Platinam, & fusissimè Georgius Scherer sacerdos Societatis Iesu, qui hac de re peculiarem tractatum Viennæ impressum edidit.

Obiicies quintò, Deus nunquam reuelauit hunc hominem esse verum Pontificem, & Ecclesiæ caput; ergo non est de fide hunc esse verum Papam; ergo non est hæreticus, qui hanc propositionem negat.

Respondeo, Deum reuelasse hunc esse verum Papam, dum reuelauit Petrum esse caput Ecclesiæ, dum enim reuelauit Petrum esse caput Ecclesiæ, simul etiam generaliter de omnibus eius successoribus reuelauit, vt bene Suarez *in tract. de fide. disp. 10. sect. 5. n. 6.* & sicut fide credendum est, hanc esse veram Ecclesiam, licèt Deus in indiuiduo, & in particulari hoc non reuelauerit, sed in genere; ita fide credendum est, hunc esse verum Ecclesiæ caput, & quilibet tenetur credere, postquam ritè, & sufficienter propositum fuit.

English

You will object thirdly, the Supreme Pontiff stands with respect to those things which he proposes to the Church to be believed as stands a Preacher who explains the faith to Barbarians and proposes the word of God; but the barbarians do not believe by infused faith that the things the preacher proposes are true; but by conjectures they judge that he does not deceive. therefore neither are the things which the Supreme Pontiff proposes to be believed by divine faith; consequently neither is it to be believed by divine faith that this man is true Pope.

I respond by denying the parity. for the Supreme Pontiff stands as judge and interpreter of God; consequently his judgment cannot be deceived. But a Preacher is not a certain judge and interpreter, but it can happen that he be deceived, and propose as to be believed of faith what in very fact is not to be believed.

11 You will object fourthly, those who have written the lives of the Pontiffs affirm that John VIII was a woman, but a woman is incapable of the priesthood and of the Papacy. therefore it is not of faith that this man is true Pope; because falsehood cannot underlie faith.

I respond that this is altogether fabulous, fabricated by heretics and adorned with many lies, as Cardinal Bellarmine shows by many arguments *lib. 3. de Romano Pontifice cap. 24.* Honufrius *in annotationibus* on Platina, and most fully Georgius Scherer, a priest of the Society of Jesus, who published on this matter a particular treatise printed at Vienna.

You will object fifthly, God never revealed this man to be true Pontiff and head of the Church; therefore it is not of faith that this man is true Pope; therefore he is not a heretic who denies this proposition.

I respond that God revealed this man to be true Pope when he revealed Peter to be head of the Church, for when he revealed Peter to be head of the Church, he at the same time also revealed it generally concerning all his successors, as Suarez well says *in tract. de fide. disp. 10. sect. 5. n. 6.* and just as it is to be believed by faith that this is the true Church, although God has not revealed this in the individual and in particular, but in general; so it is to be believed by faith that this man is the true head of the Church, and everyone is bound to believe, after it has been duly and sufficiently proposed.

Latin

Obiicies sextò, aliquando contigit, vt is pro vero Pontifice haberetur, qui re vera non erat, vt tempore antipapatus; ergo non est de fide hunc esse verum Papam, quia hæc est res, cui potest subesse falsum: fidei autem falsum subesse non potest; alioquin Deus falsitatis auctor esse posset, quod est contra fidem.

Respondeo nunquam accidisse, vt tota Ecclesia existimauerit, aliquem esse verum Papam, qui re ipsa talis non esset, licèt aliquoties pro tempore non agnouerit verum, & certum Pastorem: aliud autem est, non agnoscere verum Pastorem, aliud conspirare, & consentire in aliquem, tanquam in Pastorem, qui re vera non sit. nam dum Ecclesia non agnoscit verum Pastorem, & caput, non exponitur periculo falsorum dogmatum (cùm ea, quæ tunc temporis fiunt, certa non existimentur, donec per indubitatum Papam decernatur;) sicut exponeretur, si falsum Pastorem, tanquam verum, & certum agnosceret, & reciperet.

Obiicies septimò, negans hunc esse verum Papam, non punitur tanquam hæreticus; ergo re ipsa non videtur hæreticus.

Respondeo negando consequentiam in nostra sententia. Ratio autem, cur non puniatur tanquam hæreticus, est, euià sententia, quam ego sequor, non est explicitè definita ab Ecclesia, & multos habet contrarios DD. In sententia tamen omnium dicendum est, illum, qui negat hunc esse verum Papam, illique obedientiam præstare negligit, schismaticum esse, & schismaticorum pœnis subiici, de quibus infra *in hac quæst punct. vlt.*

APPENDIX — De legitima Summi Pontificis electione (1637): the canonical register

Appendix A — Council or Cardinals: the doubtful-Cardinals case (pp. 56–57)

4 Quæres vtrum Concilio Generali, vel potiùs Cardinalibus competat ius eligendi Pontificem, si Cardinales Sede vacante Concilium conuocari iubeant, dum electionem aliter expedire non possunt. Respondeo ius & facultatem eligendi etiam tunc temporis Cardinalibus competere, quia Cardinalibus, & non Concilio huiusmodi facultas à Papa concessa fuit, & facultas à superiore concessa, non potest ab inferiori immutari, lædi, vel restringi, *cap.*

English

You will object sixthly, it sometimes happened that he was held for true Pontiff who really was not, as in the time of antipapacy; therefore it is not of faith that this man is true Pope, because this is a thing which can have falsehood underlying it: but falsehood cannot underlie faith; otherwise God could be the author of falsity, which is against the faith.

I respond that it never happened that the whole Church esteemed someone to be true Pope who in very fact was not such, although at times for a while she did not recognize the true and certain Pastor: but it is one thing not to recognize the true Pastor, another to conspire and consent in someone as Pastor who really is not. for while the Church does not recognize the true Pastor and head, she is not exposed to the danger of false dogmas (since the things which are done at that time are not esteemed certain, until it be decreed by an undoubted Pope;) as she would be exposed, if she recognized and received a false Pastor as true and certain.

You will object seventhly, he who denies this man to be true Pope is not punished as a heretic; therefore in very fact he does not seem a heretic.

I respond by denying the consequence in our opinion. But the reason why he is not punished as a heretic is because the opinion which I follow has not been explicitly defined by the Church, and has many Doctors contrary to it. Yet in the opinion of all it must be said that he who denies this man to be true Pope, and neglects to render him obedience, is a schismatic, and is subjected to the penalties of schismatics, of which below *in hac quæst punct. vlt.*

APPENDIX — De legitima Summi Pontificis electione (1637): the canonical register

Appendix A — Council or Cardinals: the doubtful-Cardinals case (pp. 56–57)

4 You will ask whether the right of electing the Pontiff belongs to a General Council, or rather to the Cardinals, if the Cardinals, the See being vacant, should order a Council to be convoked, while they cannot otherwise expedite the election. I respond that the right and faculty of electing belongs even at that time to the Cardinals, because such a faculty was granted by the Pope to the Cardinals, and not to a Council, and a faculty granted by a superior cannot be changed, injured, or restricted by an inferior, *cap. inferior de*

Latin

inferior de maiorit. & obed. Concilium autem Generale inferius est Summo Pontifice; ergo non potest priuilegium Cardinalium lædere, variare, vel restringere; vide Albanum *quæst.* 35. & Iacobatium *lib.* 6. *art.* 4. & alios proximè citandos.

Obiicies Concilium Generale est superius omnibus aliis Ecclesiasticis Capitulis, Cœtibus, & Collegiis; ergo etiam Collegium Cardinalium illi subiicitur, consequenter facultas eligendi ad Concilium Generale potius,

quàm ad Collegium Cardinalium in tali euentu spectare videtur.

Respondeo Collegium Cardinalium non subiici Concilio Generali in iis, quæ Collegium Cardinalium agit auctoritate Papæ, seu quoad ius ipsum electionis, vt patet ex ratione superius allata, nisi fortè Cardinales iuri eligendi cedant, aut nisi dubium sit ipsos esse veros Cardinales, vt si Cardinales tēpore schismatis creati sint ab eo, quem non constabat esse verum Papam; tunc enim præfati Cardinales Concilio Generali subiiciuntur, quia non constat de iure huiusmodi Cardinalium, constat verò Concilium Generale potestatem in tota Ecclesia habere; vide Albanum *quæst.* 35. 39. & 43. *de Cardinal.* Iacobatium *de Concilio lib.* 6. *art.* 9. vbi de hac re fusè tractat, Manfredum *decis.* 245. Cardinalem Tuschum *tom.* 2. *lit. E. concl.* 57. *num.* 19. Sopranum *de elect. lib.* 1. *cap.* 18. *art.* 2. Azorium 2. *part. lib.* 4. *cap.* 2. *quæsito* 13. quorum aliqui, vt Albanus, & Azorius obseruant, Concilium Generale posse iusta de causa facultatem eligendi Cardinalibus ad tempus adimere.

Appendix B — The sixth condition: not a heretic; with the cross-reference to the Bulla Cænæ locus (pp. 90–91)

14 Sexta conditio est, vt non sit hæreticus, sed Christi fidelis. Ratio est, tum quia non potest quis esse caput illius cuius nec membrum est, nec potest esse caput totius, qui est extra totum, *cap. in totum, de reg. iur. in* 6. & Christus statuit, vt nullus sit caput Ecclesiæ Christianæ, nisi sit membrum Christi, & *qui Ecclesiam non audit*, debet esse *tanquam Ethnicus & Publicanus*; tum quia sic colligitur ex constitutione Iulij II. *in Concilio Lateranensi*, sess. 5. incipit, *cum tam diuino*, quanquam ibi sermo præcipuè est de hæresi simoniaca; ita Panormit. Francus, & alij *in cap. licèt de elect. Azor. lib.* 4. *cap.* 5. *quæsito* 7. & *cap.* 7.

English

maiorit. & obed. But a General Council is inferior to the Supreme Pontiff; therefore it cannot injure, vary, or restrict the privilege of the Cardinals; see Albanum *quæst.* 35. and Iacobatium *lib.* 6. *art.* 4. and the others presently to be cited.

You will object, a General Council is superior to all other Ecclesiastical Chapters, Assemblies, and Colleges; therefore the College of Cardinals also is subjected to it, consequently the faculty of electing seems to pertain to a General Council rather

than to the College of Cardinals in such an event.

I respond that the College of Cardinals is not subjected to a General Council in those things which the College of Cardinals does by the authority of the Pope, that is, as regards the very right of election, as is evident from the reason brought forward above, unless perhaps the Cardinals should cede the right of electing, or unless there be a doubt whether they are true Cardinals, as if the Cardinals were created in time of schism by one whom it was not established to be true Pope; for then the aforesaid Cardinals are subjected to a General Council, because the right of such Cardinals is not established, but it is established that a General Council has power in the whole Church; see Albanum *quæst.* 35. 39. & 43. *de Cardinal.* Iacobatium *de Concilio lib.* 6. *art.* 9. where he treats of this matter at length, Manfredum *decis.* 245. Cardinalem Tuschum *tom.* 2. *lit. E. concl.* 57. *num.* 19. Sopranum *de elect. lib.* 1. *cap.* 18. *art.* 2. Azorium 2. *part. lib.* 4. *cap.* 2. *quæsito* 13. of whom some, as Albanus and Azorius, observe that a General Council can for a just cause take away from the Cardinals for a time the faculty of electing.

Appendix B — The sixth condition: not a heretic; with the cross-reference to the Bulla Cænæ locus (pp. 90–91)

14 The sixth condition is, that he be not a heretic, but one of Christ's faithful. The reason is, first because no one can be the head of that of which he is not even a member, nor can he be the head of the whole who is outside the whole, *cap. in totum, de reg. iur. in* 6. and Christ established that no one should be head of the Christian Church unless he be a member of Christ, and he *that will not hear the Church* ought to be *as the heathen and publican*; then because thus it is gathered from the constitution of Julius II *in Concilio Lateranensi*, sess. 5. beginning *cum tam diuino*, although the discourse there is chiefly of simoniacal heresy; so Panormit. Francus, and others *in cap. licèt*

Latin

quæsito 1. & alij contra Innocentium & Adrian. in cap. licèt citato.

An autem Papa legitimè electus, possit in hæresim incidere, & ob hæresim Papatu priuari, constat ex dictis *in Bulla Cænæ disp. 1. quæst. 2. punct. 1. num. 12. & sequentibus*, quidquid Ioan. Azor. 2. part. lib. 4. cap. 7. *quæs. 1. &*

sequentibus; & multi alij in oppositum sentiant, existimantes Papam Hæreticum, vel Hæreticorum fautorem, defensorem, vel receptatorem, Pontificatu priuari posse.

Appendix C — The Barbarius rule: divine-law vs human-law defects (pp. 78–79)

Dices si fœmina per errorem eligeretur in Pontificem, eius acta essentne valida?

3 Respondeo negatiuè contra Iasonem *in l. Barbarius, num. 64. ff. de offic. Prætor.* Ratio est,

quia fœmina iure Diuino incapax est dignitatis Pontificiæ, atque adeo caret iurisdictione, neque Ecclesia potest hunc defectum supplere, quia supplere non potest defectui iuris Diuini, aut naturalis, vt cum communi Doctorum sententia docui *de Matrimonio*, vbi ostendi gesta per eum qui titulum habet coloratum cum errore communi valida esse, modò non adsit impedimentum iuris naturalis, vel Diuini; idémque in terminis docent, Alterius *de censuris tom. 1. lib. 2. disput. 2. cap. 2.* Mascard. *de probat. cons. 649. n. 29.* Antonius Gabriel *lib. 1. comm. concl. tit. de probat. conclus. 8. n. 9.* Si vero aliquis vir ad Pontificatum inualidè euehatur cum aliquo vitio, iure solum humano irritante electionem, valida essent ipsius acta cum titulo putatiuo, & errore communi facta, quia Ecclesia tunc ei iurisdictionem delegare, & supplere diceretur, quamuis enim Ecclesia non sit supra Pontificem; esset tamen supra hunc qui non verus, sed præsumptus Pontifex esset, vt benè Alterius *loco citato*, vbi tamen addit huiusmodi præsumptum Pontificem, non posse infallibiliter definire res fidei, quia potestas definiendi infallibiliter res fidei soli vero Pontifici, & Generali Concilio inest.

English

de elect. Azor. lib. 4. cap. 5. quæsito 7. & cap. 7. quæsito 1. and others against Innocentium and Adrian. *in cap. licèt citato.*

But whether a Pope legitimately elected can fall into heresy, and for heresy be deprived of the Papacy, is established from what was said in [the treatise on] the *Bulla Cænæ*, disp. 1, quæst. 2, punct. 1, num. 12 and following, whatever Ioan. Azor. 2. part. lib. 4. cap. 7. *quæs. 1. &*

sequentibus; and many others may think to the contrary, esteeming that a Heretic Pope, or a favorer, defender, or receiver of Heretics, can be deprived of the Pontificate.

Appendix C — The Barbarius rule: divine-law vs human-law defects (pp. 78–79)

You will say, if a woman were by error elected Pontiff, would her acts be valid?

3 I respond in the negative, against Iasonem *in l. Barbarius, num. 64. ff. de offic. Prætor.* The reason is,

because a woman is by Divine law incapable of the Pontifical dignity, and hence lacks jurisdiction, nor can the Church supply this defect, because it cannot supply for a defect of Divine or natural law, as with the common opinion of the Doctors I have taught *de Matrimonio*, where I showed that things done by him who has a colored title, with common error, are valid, provided there be not present an impediment of natural or Divine law; and the same in terms is taught by Alterius *de censuris tom. 1. lib. 2. disput. 2. cap. 2.* Mascard. *de probat. cons. 649. n. 29.* Antonius Gabriel *lib. 1. comm. concl. tit. de probat. conclus. 8. n. 9.* But if some man should be invalidly raised to the Pontificate with some vice, human law alone annulling the election, his acts done with putative title and common error would be valid, because the Church would then be said to delegate jurisdiction to him and to supply, for although the Church is not above the Pontiff; it would nevertheless be above this man, who would be not a true but a presumed Pontiff, as Alterius well says *loco citato*, where nevertheless he adds that such a presumed Pontiff cannot infallibly define matters of faith, because the power of infallibly defining matters of faith belongs to the true Pontiff alone, and to a General Council.

Latin

Appendix D — Occult simony void in conscience; the exception only before reception (p. 107)

Dico secundò, probabilius mihi videri electionem simoniacam in foro conscientiae irritam esse, etiamsi notoria non sit. Ratio est, tum quia Iulius II. absolutè irritat electionem simoniacam, modò simonia perpetrata fuerit ab electo, vel ab eligentibus, & frustrà ab aliquibus Doctoribus additur, huiusmodi electionem debere esse notoriam, Pontifex enim istam conditionem non addit, alioquin cuique liberum esset, clausulas legibus addere, & limitationes contra expressam legislatoris mentem confingere; tum quia sicut omnes excommunicati vitandi erant ante extrauagantem *Ad euitanda*; post illam verò vitandi sunt tantummodo excommunicati denunciati, & notorij, ita omnis simoniaca electio Pontificis irrita est, nisi aliter decernatur.

Ad rationes in contrarium. Respondeo, illas solum procedere pro foro externo, seu ad probandam, vel admittendam exceptionem de simonia, dum Papa nondum receptus fuit, vt tradit Iacobatius *lib. 4. art. 4. num. 44. 70. & sequentibus*.

Appendix E — The void-acts objection: Ecclesia supplet; the election subject to human law (pp. 108–109)

Obiicies primò, si electio simoniaca, licèt occulta, irrita esset, sequeretur acta Pontificis hoc pacto electi irrita esse, consequenter plurima absurda, & incommoda in Ecclesia sequerentur. Respondeo negando sequelam, vt alibi probaui, *ex l. Barbarius, ff. de officio Prætoris*,

Ecclesia enim in tali euentu supplet id, quod supplere potest.

Obiicies secundò, Summus Pontifex non ligatur legibus humanis quoad vim coactiuam; ergo illius electio irritari non potest. Respondeo Papam non ligari legibus humanis, electionem tamen legibus humanis subiici, Ecclesia enim formam electionis præscribit, qua non seruata, non tenet electio; consequenter electus forma non seruata, non est Papa, cùm Papa constituatur per legitimam electionem, vt bene Azor. 2. *part. lib. 4. cap. 5. quæst. 7. vers. Et certè*, & alij Doctores communiter de hac re agentes.

English

Appendix D — Occult simony void in conscience; the exception only before reception (p. 107)

I say secondly, that it seems to me more probable that a simoniacal election is void in the forum of conscience, even if it be not notorious. The reason is, first because Julius II absolutely voids a simoniacal election, provided the simony have been perpetrated by the one elected, or by the electors, and in vain is it added by some Doctors that such an election must be notorious, for the Pontiff does not add that condition, otherwise it would be free to anyone to add clauses to laws, and to fashion limitations against the express mind of the legislator; then because, just as all the excommunicated were to be avoided before the extravagant *Ad euitanda*; but after it only denounced and notorious excommunicates are to be avoided, so every simoniacal election of a Pontiff is void, unless it be otherwise decreed.

To the reasons to the contrary. I respond that they proceed only for the external forum, that is, for proving or admitting the exception of simony, while the Pope has not yet been received, as Iacobatius teaches *lib. 4. art. 4. num. 44. 70. & sequentibus*.

Appendix E — The void-acts objection: Ecclesia supplet; the election subject to human law (pp. 108–109)

You will object first, if a simoniacal election, though occult, were void, it would follow that the acts of a Pontiff elected in this manner are void, and consequently very many absurdities and inconveniences would follow in the Church. I respond by denying the sequel, as I have proved elsewhere, *ex l. Barbarius, ff. de officio Prætoris*,

for the Church in such an event supplies what it can supply.

You will object secondly, the Supreme Pontiff is not bound by human laws as to their coactive force; therefore his election cannot be voided. I respond that the Pope is not bound by human laws, yet that the election is subjected to human laws, for the Church prescribes the form of the election, which not being observed, the election does not hold; consequently the one elected, the form not being observed, is not Pope, since the Pope is constituted through legitimate election, as Azor. well says 2. *part. lib. 4. cap. 5. quæst. 7. vers. Et certè*, and other Doctors commonly treating of this matter.